
Appeal Decision

Site visit made on 4 August 2026

by J Heppell BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6007054

2 Chantry View Road, Guildford, Surrey GU1 3XR

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Turnbull against the decision of Guildford Borough Council.
 - The application Ref is 24/P/01774.
 - The development proposed is erection of detached dwelling (revised proposal following refusal of application 23/P/01116).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Following the submission of the appeal, the revised National Planning Policy Framework (Framework) was published on 17 August 2026. The main parties were afforded the opportunity to comment on the implications of the new Framework for the proposal.
3. The appeal was accompanied by updated computer-generated images of the proposal¹. As the images illustrated the proposal's relationship with its surroundings rather than seeking to evolve the scheme, no parties have been prejudiced, and I have determined the appeal having regard to the images.
4. A deed of unilateral undertaking was submitted under s106 of the Town and Country Planning Act 1990 to secure contributions to mitigate the impact of the proposal on the Thames Basin Heaths Special Protection Area (SPA). The Council confirmed that the deed was acceptable and overcame its reason for refusal relating to the integrity of the SPA.

Main Issue

5. In light of the above, the main issue in this appeal is the effect of the proposal on the character and appearance of the area, with particular reference to whether it would preserve the setting of a listed building (LB) and the setting of nearby conservation areas (CAs).

Reasons

6. The site is located to the south of Guildford, on the eastern side of the River Wey valley. Although surrounded by twentieth century suburban development, 2 Chantry View Road is a Grade II LB which predates the houses around it. To the west of the

¹ VuCity model

River Wey are located the Millmead and Portsmouth Road and the Wey and Godalming Navigations CAs.

7. S66(1) of the Planning (Listed Building and Conservation Areas) Act 1990 places a statutory duty on decision makers to have special regard to preserving the setting of LBs, whilst S72(1) of the Act places a statutory duty on decision makers to pay special attention to the desirability of preserving or enhancing the character or appearance of a CA. The National Planning Policy Framework (the Framework) guides that the particular significance of any heritage asset that may be affected by a proposal, including by development affecting the setting of a heritage asset, should be identified and assessed.
8. 2 Chantry View Road was originally known as Halfway Farm, and subsequently Halfway Grange, with the list entry indicating that its core dates from the seventeenth century. It originally faced Shalford Road, with barn ranges on either side enclosing a yard, the surviving remnants of which are the curtilage-listed clunch stone outbuilding and the yard walls. Historic mapping suggests that the farmhouse may once have comprised a pair of cottages, with the property still retaining two staircases. It appears to have been substantially remodelled in the late nineteenth century, particularly its northern elevation which became the front of the property following the construction of Chantry View Road.
9. The significance of 2 Chantry View Road derives from its origins as part of a range of farm buildings. Its survival along with elements of the farmyard provide an important link to the area's earlier agrarian character. The LB is timber framed and clad in brick, with tile hanging and pebbledash, and incorporates gables and chimney stacks along with jettied elements and oriel windows. Despite later alterations, the vernacular detailing and local materials evident on its southern and western elevations provide an important record of a Surrey farmhouse.
10. The character of the area has evolved over time, with the farmland originally associated with the farmhouse giving way to quarrying and residential development. Not only has later development altered the LB's setting, it has changed its orientation, with access now being taken from Chantry View Road. The former farmyard is a lawn, separated from Shalford Road by a bank and hedgerow. The clunch stone outbuilding and surviving farmyard walls provide visual pointers to the former function of the site and comprise key components of the LB's setting.
11. The significance of the CAs derives from the record they provide of the southward expansion of Guildford along the River Wey and its associated navigations. The River Wey was one of the earliest waterways in England to be made navigable, and the link it provided to London was an important element in the growth of the city prior to the arrival of the railway. The Millmead and Portsmouth Road CA is focussed on an area close to the city centre, located between the river and Portsmouth Road, itself a key route into the city. The Wey and Godalming Navigations CA runs for 20 miles between Weybridge and Godalming, and includes Guildford. The site forms a part of the wider setting of both CAs.
12. The proposal is for a two storey dwelling positioned where the host property's garden tapers to a point close to the junction of Shalford Road and Chantry View Road. The site is on the far side of the curtilage-listed outbuilding in relation to the

LB, at a slightly lower level than it but above Shalford Road. A previous proposal for a larger dwelling on the site was refused by the Council².

13. The triangular area on which the dwelling would sit resulted from the construction of Chantry View Road, which signalled a change in the area's character from rural to suburban and significantly altered the setting of the LB. As the land is not part of the surviving features or spaces of the farmyard, and the historic mapping gives no indication of whether it was used in connection with the farmyard, the site's relationship to the former agricultural function of the site is unclear. As the main element of the LB's setting is the former farmyard, including the outbuilding and farmyard walls, the site can be said to form only a minor component of its setting.
14. The proposed dwelling would be located beyond the outbuilding. Its design incorporates vernacular elements of Surrey houses and farm buildings, comprising a main section in brick and a subordinate element in timber, whilst utilising contemporary detailing. Its reduced ground coverage compared with the previous unsuccessful scheme would allow for a clear visual separation between it and the outbuilding. However, although sections showing the dwelling's relationship with the outbuilding have not been provided, the appellant's computer-generated images show the dwelling's main section being substantially higher than the outbuilding and its raised patio being level with the outbuilding's eaves and incongruously close to it. These aspects of the proposal would give it a dominant appearance in relation to the outbuilding, which in turn would negatively affect the setting of the LB, despite the site being a relatively minor element of its setting.
15. The proposal would subdivide the existing garden, resulting in a degree of fragmentation. However, the main outdoor areas which serve the existing house would remain intact, with only the area beyond the outbuilding, which is already separated from the house and driveway by hedgerows, being affected. The main elements of the LB's setting would therefore be unaffected by this subdivision. The plans do not specify the boundary treatment between the existing and proposed dwellings, but as there would be an adequate separation distance between the two dwellings, it could be controlled by condition so as to preserve the character of the area and the privacy of occupiers.
16. The Council raised a concern about the site's small size and irregular shape compared with the larger, more conventionally-shaped residential plots in the area. However, given the change in levels across the site, the site's size and shape would not be particularly evident from either road frontage. The proposal would provide car parking for occupiers and an area of outdoor space commensurate with the size of the dwelling, such that the development would not appear cramped. A section of hedgerow beside Chantry View Road would be removed but, owing to the drop in levels, the proposal would have the appearance of a single storey dwelling from the road, and so would not be unduly prominent. The relatively small size of the plot and its irregular shape are not therefore harmful aspects of the proposal.
17. The site is higher than Shalford Road and, as a result, the proposed dwelling would be visible in views along the road and in longer vistas from the River Wey and beyond. However, dwellings occupying sloping sites already feature prominently in these views, and the proposal would complement this established character.

² LPA reference 24/P/00116

Therefore, although the trees next to the site do not completely screen it, and there is a risk that their health could be affected by the engineering works to construct the dwelling, the resulting glimpsed views of the development would not be harmful. The Council's concern about unsuitable fencing being installed in place of any trees lost could be controlled by condition. I have not been presented with evidence that the engineering works required for the raised patio would damage the outbuilding. Given my findings, and the distance between the CAs and the site, the proposal would not harm the setting of the CAs.

18. In summary, I find that the proposal would preserve the setting of the nearby CAs, and as a result would have no effect on their significance. However, for the reasons I have identified, the proposal would result in harm to the significance of the LB from development within its setting. Having regard to the fact that the area affected is not a main component of the LB's setting, the degree of harm would be moderate, which is a matter of considerable importance and weight.
19. I am required by the Framework to weigh the harm I have identified against the public benefits resulting from the proposal. The proposal would provide a dwelling in a sustainable location, which is particularly beneficial given the Council's housing land supply shortfall. A single dwelling could be constructed quickly. Economic benefits would flow from the construction phase and from future occupiers using local businesses. The proposal is described as for self build, which is capable of being a benefit in situations where there is a local waiting list for self build sites. However, these benefits are not sufficient to outweigh the harm I have identified.
20. I conclude that while the proposal would preserve the setting of the nearby CAs, it would fail to preserve the setting of the LB. For this reason, the proposal would be harmful to the historic environment and the character and appearance of the area. The proposal would be contrary to policies D1 and D3 of the Guildford Borough Local Plan: Strategy and Sites 2015-2034 Adopted 25 April 2019 (LPSS) and policies D4, D8, D18, D19 and D20 of the Guildford Borough Local Plan: Development Management Policies Adopted on 22 March 2023. Together these policies set out the Council's approach to place shaping and the historic environment, requiring development to achieve high quality design which respects local distinctiveness and which conserves and enhances the significance of LBs and their settings.

Planning Balance

21. The site is within a settlement where Policy S4 of the Framework applies. Therefore, development should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework. There are no specific national policies directing refusal in this case.
22. The Framework sets out the circumstances in which the benefits of approving development are likely to be substantially outweighed by adverse effects, which include but are not restricted to the situations listed in Policy S4(2). Although none of the situations listed in the policy apply to the proposal, I am nonetheless required to consider whether the benefits of the proposal would be substantially outweighed by the harm I have identified to the significance of a heritage asset.
23. Policy HO7 of the Framework requires substantial weight to be given to the benefits of providing homes which will contribute towards meeting the evidenced

accommodation needs of the community, as identified through needs assessments prepared for the area of the local planning authority and other relevant evidence. The Council confirmed that it cannot demonstrate a five year supply of housing land, with its document entitled Five Year Housing Land Supply dated 1 April 2025 identifying a supply of 2.98 years. As the proposal would provide a home which would contribute towards meeting the evidenced accommodation needs of the community, albeit in a modest manner for a single dwelling, substantial weight is given to this benefit.

24. Policy L2 encourages the effective use of land and requires substantial weight to be given to the benefits of additional development within existing plots, provided it is consistent with the overall street scene, maintains safe access and egress, and does not occupy more than twice the footprint of all the existing buildings and retains at least 50% of the non-developed area within the curtilage of the existing buildings. The proposal satisfies these criteria by making use of the underutilised part of a large garden, and its overall design responds positively to the local context in accordance with the key principles for well-designed places set out in Policy DP3.
25. The proposal would result in moderate harm to the significance of a LB as a result of development within its setting. The Framework requires any harm to a designated heritage asset to be weighed against the public benefits; having undertaken this exercise, the public benefits do not outweigh the harm.
26. The benefit resulting from the proposal's modest contribution to meeting evidenced housing need, along with the other benefits outlined above, attracts substantial weight. The harm I have identified is a matter of considerable importance and weight by reference to Policy HE6(3). In this instance, the benefits of approving development would be substantially outweighed by the adverse effects.

European Protected Site

27. The appeal site is within the 400m-5km zone of influence of the SPA, which is a European Designated Site afforded protection under the Conservation of Habitats and Species Regulations 2017 as amended (the Habitats Regulations). Where net new residential development is proposed within the zone of influence, Policy P5 of the LPSS requires avoidance and mitigation measures to be delivered prior to occupation of the new dwellings and in perpetuity.
28. Had I been minded to allow the appeal, it would have been incumbent upon me as competent authority to consider whether the development would be likely to have a significant effect on the integrity of the site. However, as I am dismissing the appeal, it has not been necessary for me to pursue this issue further.

Conclusion

29. For the above reasons, the proposal conflicts with the development plan, when read as a whole. Material considerations do not indicate that a decision should be taken other than in accordance with the development plan. I therefore conclude that the appeal should be dismissed.

J Heppell

INSPECTOR